

MINISTRY OF NARCOTICS CONTROL

Islamabad, the 15th September, 2005

S.R.O. 1008 (I)/2005.—In exercise of the powers conferred by section 77 read with sub-section (4) of section 54 of the Control of Narcotics Substances Act, 1997 (XXV of 1997), the Federal Government is pleased to make the following rules, namely:—

1. **Short title and commencement.**—(1) These rules may be called the National Fund for Control of Drug Abuse Rules, 2005.

(2) They shall come into force at once.

2. **Definitions.**—(1) Unless there is any thing repugnant in the subject or context,—

(a) “Act” means the Control of Narcotics Substances Act, 1997 (XXV of 1997);

(b) “Chairman” means the Chairman of the Governing Body;

(c) “Fund” means the National Fund for Control of Drug Abuse; and

(d) “Governing Body” means the Governing Body constituted under sub-section (4) of section 54 of the Act;

(2) All other words and expressions used but not defined herein shall have the same meaning as is assigned to them in the Act.

3. **Governing Body.**—(1) There shall be a Governing Body for the management, control and supervision of the Fund.

(2) The Governing Body shall consist of the following, namely:—

(a) Secretary, Ministry of Narcotics Control.

Chairman

(b) Director General, Anti Narcotics Force.

Member

(c) ~~Director General Health Division~~

Member

~~and comma “Director General Health Division” the words and comma “Chief Executive Officer, Drug Regulatory Authority of Pakistan” shall be substituted.~~

(d) ~~Member of Finance Division, not below the rank of Joint Secretary.~~

Member

4 sub by SRO 478(I)/2013 dt 3/6/2013

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(b) Director General, Anti Narcotics Force. *Member*

(c) Director General, Health Division *Member*

(d) Nominee of Finance Division, not below the rank of Joint Secretary. *Member*

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(e) Director (P&D), Anti Narcotics Force. *Member*

(f) Nominee of the Ministry of Narcotics Control, not below the rank of Joint Secretary or Sr. Joint Secretary. *Secretary*

(3) The Governing Body, when required, may co-opt such other members as it may deem appropriate.

(4) Any expenditure out of the Fund shall be incurred with the approval of the Governing Body under rule 6.

4. **Head of Account.**—All receipts mentioned in clauses (a) to (e) of sub-section (1) of section 54 of the Act shall be credited to the Fund in the Public Account under the Head "G12738-National Fund for Control of Drug Abuse" by depositing the amounts in the State Bank of Pakistan.

5. **Procedure for demand and release out of Fund.**—(1) Budgetary and project proposal shall be submitted to the Ministry of Narcotics Control.

(2) The proposals for expenditure out of the Fund shall be referred for scrutiny to the sub-committee constituted under rule 6.

(3) The grant sanctioned for the project shall be released by the Accountant General of Pakistan Revenues (AGPR) in accordance with the procedure prescribed for Government Funds.

(4) The amount credited to the Fund shall not lapse at the end of the financial year and shall be available for utilization at any time.

6. **Internal sub-Committee.**—(1) Proposals for the expenditure out of the Fund shall be submitted for scrutiny to a sub-committee comprising Joint Secretary, Ministry of Narcotics Control, Director Headquarters, Anti Narcotics Force and Director (P&D) Anti Narcotics Force as its *ex-officio* members. Joint Secretary, Ministry of Narcotics Control shall chair the meeting and Director (P&D) shall act as its Secretary.

(2) After clearance by the sub-committee, the proposals for the expenditure out of the Fund shall be submitted to the Governing Body for approval and release from Accountant General of Pakistan Revenues.

7. **Auditing of Fund.**—(1) After the purchase of sanctioned items or completion of approved activity, all bills and cash memos verified and attested with

endorsement of stock entry on each shall be forwarded to the Secretary, Governing Body for record.

(2) Internal Audit of the expenditure, as required under rule 13 of the General Financial Rules (Volume-I), shall be conducted by a sub-committee constituted by the Governing Body for this purpose.

(3) After closing of the financial year, the office of the Auditor General of Pakistan shall carry out audit of accounts of the Fund (Head G 12738), every year.

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MUHAMMAD ASHRAF CHEEMA,
Deputy Secretary